

SUBLETTING, TEMPORARY RENTALS AND ASSIGNMENT ADDENDUM

Addendum Date: ["Management"] ☐ as Owner of

☐ as Agent for the Owner of

["Property Name"] enters into this Subletting, Temporary Rentals and Assignment Addendum to the Rental Contract with

["Resident"], pertaining to House / Unit No.

located at

[Address]. This addendum is part of the Rental Agreement dated [Date of Lease]. If any terms of the Lease and this Addendum conflict, then the terms of this addendum shall control. This addendum is incorporated by reference into the Rental Contract.

- 1. Purpose and Acknowledgement.** The lease prohibits the assignment and subletting of the lease. This Addendum is intended to further clarify that the lease also prohibits using or leasing the house for short term or periodic rentals, hotel like or transitory accommodations, temporary or short term assignment, and temporary or short term subletting which is less than the full term of the lease to anyone who is not an authorized resident or occupant named in the lease or to anyone for commercial purposes, or to anyone in exchange for money or other valuable consideration. The lease also prohibits a housing swap under which the resident exchanges his or her house with a non-resident in exchange for the non-resident's home or housing. The lease identifies the only authorized residents and occupants who may occupy the house, and prohibits anyone other than the disclosed residents and occupants from occupying the house. Short term or periodic rentals on a transitory basis also violate the permitted uses of the house under the lease.

Resident acknowledges, agree(s), and understands that Resident, his or her occupants, social guests, and invitees are prohibited from assigning, subletting, renting, or exchanging the house as a temporary or short term rental or housing to an unauthorized resident or occupant without Management's prior written consent. Management may withhold approval of such temporary housing in its sole discretion. Any short term or temporary assignment, subletting, rental, or exchange of the house may introduce persons onto the property who do not meet the rental qualifications or which arrangement is in violation of federal and state laws which prohibit transient use of housing which is regulated under an affordable housing program, including but not limited to, Section 8 Housing Choice Voucher and Low Income Housing Tax Credit regulations and housing programs.

- 2. Prohibitions Against Short Term Rentals, Assignments, Subleases, and Exchanges.** Resident acknowledges and agrees that he or she will not assign, sublease, lease, rent, or exchange the house to another unauthorized resident or occupant for any portion of the lease or renewal term. Resident further agrees not to advertise the house or any portion of it for short term or periodic rental in any manner including, but not limited to, any internet websites or short term rental, listing, or exchange services for housing. Any person who is not the authorized Resident or Occupant and occupies any portion of the house for any period of time in exchange for compensation or consideration is not a "Guest" and is prohibited by this agreement. Resident is allowed to have overnight guests, social guests, family members, or visitors who are visiting at the invitation of an authorized Resident or occupant for a short period of time on a non-commercial basis and who are not paying consideration or compensation to the Resident or occupant in exchange for the right to use and occupy the house.
- 3. Violation of this Addendum.** Assignment, subletting, rental, exchange, or use of the house in violation of this Addendum is a material breach of the lease agreement, and Management at its sole discretion may immediately terminate the Rental Contract or Resident's right of possession and occupancy of the house as provided in the lease.
- 4. Indemnification and Release.** Resident agrees to release, discharge, indemnify Owner or Management from any loss, damage, liability, or claim and to pay Management's attorney's fees and expenses incurred, arising from any violation of the Lease or this Addendum.
- 5. Merger of All Prior Statements.** All prior statements, representations or agreements pertaining to the right to sublease, assign, or the authorization of short term leases shall be void and unenforceable and are merged herein unless such representation is in writing and signed by all parties to this addendum and the Rental Contract. If any phrase, sentence, portion, provision, or paragraph of this addendum shall be found or determined to be void or unenforceable under applicable law, then such void or unenforceable phrase, sentence, portion, or paragraph shall be severed, and the balance or remainder of this addendum shall be upheld as valid and enforceable so as to carry out the expressed intent of the parties to this contract. The provisions of this addendum are contractual in nature and not mere recitals.

Any Portion of Addendum Found to Be Void or Unenforceable To Be Severed and Remainder Enforced. If any phrase, sentence, portion, provision, or paragraph of this addendum is held to be void or unenforceable, the addendum in its entirety shall be admissible in evidence in any civil lawsuit or trial with appropriate instructions as to effectiveness of the void or unenforceable portion.

Name of Owner or Management Company

Resident

By:

Signature of Owner or Management Company

Resident

Resident

As:

(Title)

Resident

Resident

Resident